

DEPARTMENT OF VETERANS AFFAIRS

**SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5**

Acquisition Plan Action ID: 36C246-25-AP-0861

1. **Contracting Activity:** Department of Veterans Affairs, VISN 06, Durham VA Medical Center. 558-25-2-301-0029
2. **Nature and/or Description of the Action Being Processed:** Steris shall provide the Implementation and Onboarding Services and Deliverable(s) as follows:
 - A walkthrough on-site at Customer facility.
 - Completion of Customer requested IT requirements/documents.
 - Order and installation of the connectivity kits that enable the ConnectCare functionality.
 - Activate Service Portal account.
 - Conduct in-person training.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** Steris will provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and nonpersonal services necessary to provide full maintenance support for the items listed in the Government Solicitation and all support items / components as defined in the Government PWS except for those items specified as government furnished property and services. Steris will perform to the Governments' required standards in the contract. Period of Performance: 05/01/25-04/30/26 with an total estimated cost of for a Base + 4 (one year) options is \$554,562.49.
4. **Statutory Authority Permitting Restricted Competition:**
FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**
 - (x) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
 - () Unusual and Compelling Urgency
 - () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
 - () International Agreement
 - () Authorized or Required by Statute
 - () National Security
 - () Public Interest
5. **Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** All replacement parts manufactured or marketed by STERIS are compliant with original equipment manufacturer (OEM) specifications. These parts are sold and shipped directly to the end user of the products. Steris does not utilize a distributor model.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:** Steris has over 950 trained personnel who maintain our equipment through preventive maintenance agreements assuring STERIS-manufactured equipment continues to operate in compliance with OEM specifications.
7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** I plan on getting fair and reasonable pricing by using historical pricing.
8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:** Market research was not conducted because Steris is the sole factory-authorized supplier of parts and service for the equipment they manufacture, including products under the brand names of AMSCO, Finn Aqua, HAMO, Black Diamond Video, Medisafe and Cantel/Medivator.
9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** This is proprietary equipment and software and Steris is the only one that is authorized to provide this service.
10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** N/A
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** N/A
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Charlie Jah
COR
Durham VAMC

Date

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP:](#)

- a. **Contracting Officer or Designee's Certification (required):** I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Byron Brown
Contracting Officer

Date

VHAPG Part 813.5 Simplified Acquisition Procedures for Certain Commercial Items
Attachment 1: Request for Sole Source Justification Template >SAT-\$7.5M under FAR13.5

- b. **One Level Above the Contracting Officer (Required over SAT but not exceeding \$750K):** I certify the justification meets requirements for other than full and open competition.

Stephanie Thompson
Services/Supply Branch Chief

Date